



MEDPREP

MEDPREP, LLC

CONFIDENTIALITY AND NON-DISCLOSURE AGREEMENT

Confidentiality and Non-Disclosure Agreement

This Confidentiality and Non-Disclosure Agreement (“Agreement”) is made effective as of September 21, 2026 (“Effective Date”), by and between MedEdPrep, LLC, of 338 Leggett Rd, Dallas, Georgia 30157 (“Disclosing Party” or “MedEdPrep”), and Gene Hoover, of _____ (“Recipient”).

The Disclosing Party has requested, and the Recipient has agreed, to protect any confidential material and information that the Disclosing Party may share. Therefore, the parties agree as follows:

I. Confidential Information. The term “Confidential Information” refers to any and all confidential, proprietary, or non-public information exchanged between the Parties on or after the Effective Date, whether directly or indirectly. This includes, but is not limited to, trade secrets, information concerning or related to the business, including financial and accounting information, budgets, projections, forecasts, business plans, operating methods, business strategies, product and service information, curricula, course materials, scenarios, examination items and item banks, student records and education data, research and development data and materials, systems, techniques, intellectual property, software programs and works of authorship, know-how, marketing and distribution plans, planning data, marketing strategies, price lists, market studies, employee lists, and supplier and partner lists, regardless of whether the Confidential Information is disclosed in writing, orally, or through other forms of communication or observation.

All Confidential Information shall be protected and safeguarded if it is (a) marked as the Disclosing Party's Confidential Information (or with an equivalent legend) at the time of disclosure if disclosed in tangible form, or (b) identified as Confidential Information at the time of disclosure. Notwithstanding the failure of the Disclosing Party to mark information as confidential or proprietary as described above, information that, by its very nature, or under the particular circumstances of disclosure, should reasonably be understood to be confidential or proprietary is also deemed Confidential Information.

II. Purpose of Disclosure. Information will be disclosed to the Recipient for the purpose of performing the Recipient's duties as an employee of MedEdPrep in the position of Director of Education, requiring access to proprietary software, internal records, curricula, examination materials, student records, and training materials.

III. Term. The term of this Agreement will begin on the Effective Date and shall remain in effect for the duration of the Recipient's employment with MedEdPrep. For twenty-four (24) months after the Recipient's employment ends for any reason, the Recipient must continue to protect the Confidential Information that was received during the term of this Agreement from unauthorized use or disclosure; for information constituting a trade secret (including examination items and item banks) and for student records protected by law, this obligation continues for as long as the information remains a trade secret or legally protected.

IV. Protection of Confidential Information. The Recipient understands and acknowledges that the Confidential Information has been developed or obtained by the Disclosing Party by the investment of significant time, effort, and expense, and that the Confidential Information is a valuable, special, and unique asset of the Disclosing Party, which provides the Disclosing Party with a significant competitive advantage and needs to be protected from improper disclosure. In exchange for receiving the Confidential Information, the Recipient agrees as follows:

- a. **No Disclosure.** The Recipient will hold the Confidential Information in confidence and will not disclose the Confidential Information to any person or entity without the prior written consent of the Disclosing Party, except as required to perform the Recipient's job duties.
- b. **No Copying/Modifying.** The Recipient will not copy or modify any Confidential Information except as required to perform the Recipient's job duties or with the prior written consent of the Disclosing Party.
- c. **Unauthorized Use.** The Recipient shall promptly advise the Disclosing Party if the Recipient becomes aware of any possible unauthorized disclosure or use of the Confidential Information.
- d. **System Access and Credentials.** The Recipient may be granted access to the Disclosing Party's platforms, systems, or accounts for the purpose of performing the Recipient's job duties. The Recipient agrees to: (i) keep all login credentials strictly confidential and not share them with any third party; (ii) access only those portions of the system necessary for the Recipient's duties; (iii) refrain from downloading, exporting, or copying data except as authorized; (iv) notify the Disclosing Party immediately upon discovering any unauthorized access or security breach; and (v) cease all access and return or destroy any stored credentials within seven (7) days of the end of the Recipient's employment for any reason.

V. Use with Artificial Intelligence Tools. The Recipient may use artificial intelligence tools in the course of performing job duties, including locally-run AI tools and AI features integrated into the Disclosing Party's own platforms. However, the Recipient shall not upload, input, or otherwise provide any Confidential Information to any third-party, web-based, or cloud-hosted AI tool, platform, or system where such data may be stored, processed, or accessible beyond the Recipient's local environment, except tools approved in writing by the Disclosing Party. This includes, but is not limited to, documents, recordings, examination items, student data, or proprietary data. General discussions about concepts, strategies, or non-specific information are permitted.

VI. Exceptions to Confidential Information. Confidential Information, as it is used in this Agreement, does not include the following: (i) information that is publicly known due to disclosure by the Disclosing Party; (ii) information received by the Recipient from a third party who has no confidentiality obligation; (iii) information independently created by the Recipient, including materials the Recipient created before employment or wholly outside its scope as described in the Recipient's offer letter; (iv) information disclosed by operation of law; and (v) any other information that both parties agree in writing is not confidential.

VII. Unauthorized Disclosure — Injunction and Remedies. The Recipient acknowledges and agrees that there can be no adequate remedy at law if any Confidential Information is disclosed or is at risk of being disclosed in breach of this Agreement, and that any such breach may result in irreparable harm to the Disclosing Party. Upon any such breach or threat thereof, the Disclosing Party shall be entitled to temporary or permanent injunctive or mandatory relief, in addition to whatever remedies it might have at law, including a

claim for losses and damages. The Recipient will notify the Disclosing Party in writing immediately upon the occurrence of any such unauthorized release or other breach.

VIII. Alternative Dispute Resolution. The parties will attempt to resolve any dispute arising out of or relating to this Agreement through friendly negotiations. If any controversies, claims, or disputes arising out of or relating to this Agreement cannot be resolved through negotiation, they will be resolved by binding arbitration under the rules of the American Arbitration Association. The parties shall select a mutually acceptable arbitrator knowledgeable about issues relating to the subject matter of this Agreement. The arbitrator's decision will be final, and any court with proper jurisdiction may enter judgment upon it. During the continuance of any arbitration proceeding, the parties shall continue to perform their respective obligations under this Agreement.

IX. Whistleblower Protection. This Agreement is in compliance with the Defend Trade Secrets Act and provides civil and criminal immunity to any individual for the disclosure of trade secrets: (i) made in confidence to a federal, state, or local government official, or to an attorney, when the disclosure is to report suspected violations of the law; or (ii) in a complaint or other document filed in a lawsuit if made under seal.

X. Non-Circumvention. During the term of this Agreement, and for twelve (12) months thereafter, the Recipient will not attempt to do business with, or otherwise solicit, any business contacts found or otherwise referred by the Disclosing Party to the Recipient for the purpose of circumventing the Disclosing Party, the result of which would be to prevent the Disclosing Party from realizing or recognizing a profit or fees, without the specific written approval of the Disclosing Party. Nothing in this section limits the outside employment, clinical practice, and teaching permitted by the Recipient's offer letter.

XI. Return or Destruction of Confidential Information. Upon the end of the Recipient's employment, or upon written request from the Disclosing Party, the Recipient must return all Confidential Information and property belonging to the Disclosing Party, including records, notes, data, memoranda, models, and equipment of any kind in the Recipient's possession or control that pertain to the Disclosing Party's Confidential Information. All copies or extracts of the Confidential Information on the Recipient's personal devices or accounts must be promptly and permanently deleted. Nothing in this section requires the Recipient to delete or surrender materials the Recipient owns as described in the Recipient's offer letter.

XII. Relationship of Parties. This Agreement does not create any agency, partnership, or joint venture between the parties, and does not alter the at-will nature of the Recipient's employment or create a contract of employment for any fixed period.

XIII. Limited License to Use. The Recipient shall not acquire any intellectual property rights under this Agreement except the limited right to use as set forth above. The Recipient acknowledges that, as between the Disclosing Party and the Recipient, the Confidential Information and all related copyrights and other intellectual property rights are (and at all times will be) the property of the Disclosing Party, even if suggestions, comments, and/or ideas made by the Recipient are incorporated into the Confidential Information or related materials during the period of this Agreement. Nothing in this section alters the ownership of, or the license to, the Recipient's pre-existing and outside materials as described in the Work Product & Intellectual Property provision of the Recipient's offer letter.

XIV. Indemnification. The Recipient agrees to indemnify and hold the Disclosing Party harmless from all claims, losses, expenses, fees, including attorney fees, costs, and judgments that may be asserted against the Disclosing Party that result from the acts or omissions of the Recipient in breach of this Agreement.

XV. Attorney's Fees. If a legal suit, action, or proceeding, including arbitration, is brought by any party to enforce or to interpret any provision of this Agreement, the prevailing party will be entitled to recover, in addition to any other damages awarded, all costs associated with conducting the suit, action, proceeding, or arbitration and reasonable attorneys' fees.

XVI. Entire Agreement. This Agreement, together with the confidentiality provisions of the Recipient's offer letter, contains the entire agreement of the parties with respect to the subject matter contained herein and supersedes any previous or simultaneous oral or written promises, warranties, representations, agreements, or conditions between the parties concerning this subject matter.

XVII. Amendment. This Agreement may be modified, amended, or supplemented only if the changes are made in writing and signed by both parties.

XVIII. Successors and Assigns. This Agreement shall be binding upon and inure to the benefit of the parties hereto and their respective permitted successors and assigns.

XIX. Severability. If any provision of this Agreement shall be held to be invalid, illegal, or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court finds that any provision of this Agreement is invalid, illegal, or unenforceable, but that by limiting such provision it will become valid, legal, and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited.

XX. Waiver. The failure of either party to enforce any provision of this Agreement shall not be construed as a waiver or limitation of that party's right to subsequently enforce and compel strict compliance with every provision of this Agreement.

XXI. Governing Law. This Agreement shall be governed by the laws of the State of Georgia.

XXII. Signatories. This Agreement shall be executed by Jeramey Ricks, Chief Executive Officer, on behalf of MedEdPrep, LLC, and by Gene Hoover, and delivered in the manner prescribed by law as of the date first written above.

The Disclosing Party: MedEdPrep, LLC

Jeramey Ricks, Chief Executive Officer

Date

The Recipient:

Gene Hoover

Date